

1.16 SECONDARY DWELLINGS AND ANCILLARY BUILDINGS

State Environmental Planning Policy (Housing) 2021 permits secondary dwellings in all residential zones and includes development standards for secondary dwellings. This Part provides additional development controls that are to be read in conjunction with the SEPP. Where there is an inconsistency between the Housing SEPP and this DCP, the development standards in the Housing SEPP prevail.

To ensure amenity and restrict overdevelopment of a site, the principal dwelling plus any ancillary structures, including secondary dwellings, are to comply with the controls in *Part C1 Low Density Residential Development* for site coverage, minimum landscaped area, private open space, and height controls.

Objectives

- (a) To ensure secondary dwellings and ancillary development achieve acceptable levels of building design, amenity, landscaping, access and security.
- (b) To limit the bulk and scale of secondary dwellings and ancillary development.
- (c) To avoid excessive development of existing landscaped areas and open space of dwellings.
- (d) To minimise the adverse amenity impacts of secondary dwellings and ancillary buildings on adjoining properties.
- (e) To ensure secondary dwellings and ancillary development enhances the streetscapes of laneways and primary streets.

Controls**1.16.1 Secondary Dwellings**

- (a) Secondary dwellings are to comply with the provisions of Clause 5.4(9) of WLEP. Where secondary dwellings are proposed to address the rear lane, the provisions in *Part C1.14 Dual Frontage Development* will also apply.
- (b) Any detached secondary dwelling must clearly read as a secondary structure associated with the principle dwelling.
- (c) Secondary dwellings are not to significantly impact upon the privacy and amenity of neighbouring properties.
- (d) Secondary Dwellings must comply with the provisions of Part B1 Waste and provide storage for waste in addition to the primary dwelling.
- (e) Parking permits will not be permitted for residents of a secondary dwelling.
- (f) Secondary dwellings that do not front a laneway are to be single storey only, with an overall maximum height of 3m.
- (g) Side setbacks of secondary dwellings are to be determined on a site by site basis, with consideration given to the context and amenity of neighbouring properties.

1.16.2 Ancillary Development

- (a) Ancillary buildings are to be minor buildings, integrated into the landscaped open space area of the dwelling, with the floor area of all ancillary buildings on an allotment not exceeding 10% of the allotment size.